

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Julian Phillips	Team: Squad #9	CCRB Case #: 201705769	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 07/08/2017 2:30 AM	Location of Incident: Front of 1564 Southern Boulevard	Precinct: 42	18 Mo. SOL 1/8/2019	EO SOL 1/8/2019	
Date/Time CV Reported Sat, 07/08/2017 7:02 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/17/2017 11:17 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Sean Casey	30698	952551	042 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Merita Hoxha	11713	955988	042 PCT
2. POF Chris Aybar	15039	955736	042 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Sean Casey	Abuse: Police Officer Sean Casey stopped the vehicle in which § 87(2)(b) was an occupant.	
B.POM Sean Casey	Abuse: Police Officer Sean Casey stopped the vehicle in which § 87(2)(b) was an occupant.	
C.POM Sean Casey	Abuse: Police Officer Sean Casey stopped the vehicle in which § 87(2)(b) was an occupant.	

Case Summary

On July 8, 2017, while in police custody, § 87(2)(b) complained that physical force had been used during his arrest, generating the Internal Affairs Bureau original log number 17-26181. On July 17, 2017, IAB forwarded this complaint to the CCRB.

On July 8, 2017 at approximately 2:30 a.m., § 87(2)(b) and two friends, § 87(2)(b) and § 87(2)(b) (surname unknown) were in a vehicle in the vicinity of 1564 Southern Boulevard. All three had been drinking alcohol. § 87(2)(b) who did not have a valid license, walked to the front driver side of the vehicle and entered the driver seat. Police Officer Sean Casey (accompanied by his partners, Police Officer Chris Aybar and Police Officer Merita Hoxha, all of the 42nd Precinct) stopped the vehicle (**Allegations A, B, and C**). PO Casey questioned § 87(2)(b) § 87(2)(b) ordered him to exit the vehicle, and placed him under arrest. § 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

Mediation, Civil and Criminal Histories

- This case was deemed unsuitable for mediation due to § 87(2)(b)'s arrest.
- A Freedom of Information Law Request for Notice of Claim was submitted to the office of the New York City Comptroller on October 13, 2017. Any responsive notice of claim will be added to the case file upon receipt (01 Board Review).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)

Civilian and Officer CCRB Histories

- § 87(2)(b) was the complainant in CCRB case § 87(2)(b)
 - PO Casey has been a member of the NYPD for five years and has one prior CCRB complaint, with no substantiated allegations. § 87(2)(g)
- § 87(2)(b)

Potential Issues

- Sworn statements could not be obtained from the two additional civilians who were present with § 87(2)(b) at the time of this incident. § 87(2)(b) provided contact information for § 87(2)(b) who provided a telephone statement to the investigation before being deemed uncooperative after failing to respond to repeated contact attempts. Neither § 87(2)(b) nor § 87(2)(b) were able to provide a complete name or contact information for

§ 87(2)(b) Both § 87(2)(b) and § 87(2)(b) identified § 87(2)(b) as the owner of the vehicle in which they were stopped; however, the NYPD was not able to determine the identity of the vehicle's owner because it did not carry valid license plates or a Vehicle Identification Number (05 Board Review).

Findings and Recommendations

Allegations not pleaded

- **Force – Physical Force.** The initial IAB log in this case was generated after § 87(2)(b) complained during the processing of his arrest that, at the time of his apprehension, PO Casey had pushed him onto the ground, causing him to sustain a laceration to his knee. § 87(2)(b) further alleged during his time at Central Bookings that PO Casey had used additional force that resulted in a break to his wrist, and that PO Casey had forcibly sodomized him with a broomstick during his arrest processing. When § 87(2)(b) was interviewed by the CCRB on August 4, 2017, he retracted these force allegations. § 87(2)(b) clarified that he had fallen over at the time of his apprehension when PO Casey tapped his back because he was unsteady on his feet, that he had suffered pain to his wrist due to being restrained in handcuffs, and that PO Casey had made contact with his buttocks through his clothing while conducting a routine search. § 87(2)(g)

Allegation A – Abuse of Authority: Police Officer Sean Casey stopped the vehicle in which

§ 87(2)(b) **Unknown was an occupant.**

Allegation B – Abuse of Authority: Police Officer Sean Casey stopped the vehicle in which

§ 87(2)(b) **was an occupant.**

Allegation C – Abuse of Authority: Police Officer Sean Casey stopped the vehicle in which

§ 87(2)(b) **was an occupant.**

In his sworn statement to the CCRB on August 4, 2017, § 87(2)(b) stated that § 87(2)(b) had originally been driving the vehicle in which he and § 87(2)(b) were passengers. § 87(2)(b) stated that all three individuals had consumed alcohol, but that none of them was intoxicated. § 87(2)(b) explained that he had asked § 87(2)(b) to stop the vehicle because he had been driving in an unsafe manner. After § 87(2)(b) pulled over, § 87(2)(b) entered the front driver seat in order to drive the vehicle to a legal parking space. § 87(2)(b) then sat in the front driver seat for approximately one minute, without placing the vehicle into drive or moving the vehicle. PO Casey and his partners approached the stationary vehicle. PO Casey spoke briefly to § 87(2)(b) § 87(2)(b) determined that he did not hold a valid license, asked him to exit the vehicle, and administered a Portable Breathalyzer Test. While standing outside the vehicle, § 87(2)(b) was unsteady on his feet, and at one point fell to the ground after PO Casey tapped his back without warning.

In a telephone statement provided to the CCRB on August 10, 2017, § 87(2)(b) stated that a male individual (who she could not identify, but who was determined by the investigation to

correspond to § 87(2)(b) was driving the vehicle in which she and § 87(2)(b) were passengers. § 87(2)(b) stated that she had consumed alcohol earlier that evening but was not intoxicated, while neither § 87(2)(b) nor the unidentified driver had consumed any alcohol. § 87(2)(b) further stated that the unidentified driver had parked the vehicle, and that they had sat in the vehicle for several minutes before the officers approached. She stated that the officers questioned both the driver and § 87(2)(b) before ordering § 87(2)(b) to exit the vehicle.

PO Aybar, PO Casey, and PO Hoxha provided statements to the CCRB on October 5, 2017.

§ 87(2)(g) The officers stated that they were conducting a routine patrol when they observed a running vehicle double-parked on Southern Boulevard. The officers observed § 87(2)(b) walking towards the front driver-side door, and noted that he appeared unsteady while walking, stumbled, and held onto the exterior of the vehicle for balance. They observed § 87(2)(b) enter the vehicle, and watched the vehicle immediately pull into traffic without signaling. PO Casey decided to stop the vehicle and activated the emergency lights and sirens in the police vehicle. When the officers approached the stationary vehicle, they smelled a strong odor of alcohol and observed open containers in the front driver seat and front passenger seat areas. PO Casey spoke to § 87(2)(b) and, upon observing that he gave incomplete or conflicting answers to basic questions (including by providing multiple variant names for himself) and was displaying behavior indicative of intoxication, placed him under arrest.

PO Casey and his partners cited three justifications for stopping the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants: observing the vehicle double-parked, observing § 87(2)(b) walk with a gait indicative of intoxication, and then observing the vehicle pull into traffic without signaling. § 87(2)(g)

§ 87(2)(b) § 87(2)(b) stated that the officers approached him after he entered the driver seat but before he began to drive; the officers stated that they observed § 87(2)(b) begin to drive and fail to signal before PO Casey stopped the vehicle in motion. § 87(2)(b)

§ 87(2)(g)

Courts have long held (People v. Hutchinson, 60 A.D.2d 557) that officers may stop a vehicle based on observations made of one of its occupants before he or she entered the vehicle (06 Board Review). § 87(2)(g)

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

Squad: 9

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date